

8. *Madeira v. Converse, Inc.*, Case No. CIVDS1830261
Plaintiff's Motion to Lift Stay of Action
5/15/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Requests for Judicial Notice: The Court would take notice of Plaintiff's and Defendant's court documents. However, the Court may only take notice of the facts set forth in the orders and rulings in Defendant's requests numbers 3-5.

As to the motion: The Court would **DENY** without prejudice.

Case Summary

This case started as a wage-and-hour class and representative action. Plaintiff alleges a variety of wage-and-hour violations which allegedly occurred during his employment for Defendant. On January 25, 2019, Defendant removed this matter to the federal District Court. On June 11, 2019, Plaintiff filed his operative First Amended Complaint (FAC), which alleges violations relating to (1) meal periods; (2) rest breaks; (3) overtime wages; (4) minimum wages; (5) final pay; (6) maintenance of required records; (7) wage statements; as well as (8) violation of the unfair competition law and (9) civil penalties pursuant to the Private Attorneys General Act (PAGA).

Relevant here, on February 10, 2020, Plaintiff filed a motion to certify in District Court. The District Court *denied* the motion and then remanded the action back to this Court on the ground that Plaintiff could no longer satisfy the requirements under the Class Action Fairness Act (CAFA). The Ninth Circuit reversed, holding that the District Court still had jurisdiction over Plaintiff's individual claims. On remand, the District Court declined to exercise supplemental jurisdiction over Plaintiff's PAGA claims. And, on February 21, 2021, the District Court remanded Plaintiff's PAGA cause back to this Court. The District Court's various class claims have been appealed and litigated. Currently, the Ninth Circuit has ordered the District Court to delay its ruling on motions related to certification on the rounding claims until a pending California Supreme Court case on topic is decided. Defendant's motion to stay *this* matter pending that ruling was granted on January 30, 2024. This motion to lift the stay followed.

Analysis

The prior stay was premised largely on the proposition that, depending on the California Supreme Court's ruling on the pending *Camp* matter, Plaintiff could lose standing to prosecute this PAGA action. (See *Camp v. Home Depot* (2022) 84 Cal.App.5th 638.) Thus, judicial economy and efficiency were promoted by the stay. At the recent February 17, 2026, Case Management Conference (CMC) the Court noted that the at-issue *Camp* case was due to set oral arguments soon before the California Supreme Court.

The Court has discretion to lift the stay pursuant to Code of Civil Procedure section 1281.4. Section 68607 of the Government Code requires judges to eliminate delay in the progress and ultimate resolution of litigation.

Here, Plaintiff requests that the Court lift its stay, despite the fact that the *Camp* case is still pending. Defendant requests the Court exercise its discretion to continue the stay in this action, citing *Caiafa Prof. Law Corp. v. State Farm Fire & Cas. Co.* (1993) 15 Cal.App.4th 800, to argue that it is appropriate for the court to stay when the Class Action is pending federal court action covering overlapping claims:

The *Caiafa* court explained it is black letter law that when a federal action has been filed covering the same subject matter as is involved in a California action, the California court has the discretion, but not the obligation, to stay the state court action. (*Id.*, at p. 804.) “In exercising its discretion the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions.” (*Ibid.*) “It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced.” (*Ibid.* [internal citation omitted].)

Moreover, there is no requirement of exactitude. (*Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal.App.4th 1168, 1175.) As such, the fact that the parties in the two actions “are not entirely identical” and the remedies sought are not “precisely the same” is not controlling. (*Id.*) It is sufficient that both suits arise out of the same transaction or events. (*Id.*)

Such is the case here as both actions challenge the wage-and-hour practices of Defendant. The similarities between both cases support the continuation of a stay so as to promote judicial efficiency. A stay would also avoid multiple litigations over the same issues, involving the same parties, which might create jurisdictional conflicts. It does not appear that anything has changed except for the passage of time. The Court is cognizant that the California Supreme Court sometimes takes time to address the issues before it. Thus, the Court would deny but without prejudice.

9. *South Colton Families First, et al, v. City of Colton, et al*, Case No. CIVSB2317228
Motion for Leave to File Supplemental Petition for Writ of Mandate
Motion to Discharge Peremptory Writ of Mandate
5/15/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to the Motion for Leave to File Supplemental Petition for Writ: The Court would **DENY**.

As to the Motion to Discharge the Peremptory Writ: The Court would **GRANT**.

As to Petitioners' Request for Judicial Notice: Petitioner requests notice of excerpts of the Corridor Specific Plan, dated 1986, accessed and presented via a website, the Court would **DENY**. Courts have denied such requests as there is no "official website" provision for judicial notice in California. (*Bridges v. Mt. San Jacinto Community College District* (2017) 14 Cal.App.5th 104, 117 [printout from website "not the type of agency action we may judicially notice"]; also *Ragland v. U.S. Bank Nat. Assn.* (2012) 209 Cal.App.4th 182, 194 [while court may take judicial notice of existence of websites, it may not accept the truth of a website's content].)

As to Respondents' Requests for Judicial Notice: Respondents seek notice of Exhibits B through M, which include Resolution Nos. R-04-26, R-10-26, R-11-26, R-12-26, R-13-26; Ordinance Nos. O-03-26, O-04-26; true and correct copies of the Final Initial Study/Consistency Checklist Agua Mansa Logistics Center Project dated January 16, 2026; the Notice of Exemption submitted to the Clerk of San Bernardino County; the Staff Report for Agenda Item No. 2 including Attachment 2 (Excerpts of Final Checklist) at the February 3, 2026 City Council Meeting; and the City of Colton Municipal Code, section 18.48.134 Warehouse, Truck and Trailer Storage/Parking and Business Park. The Court would **GRANT**.

Case Summary

This is California Environmental Quality Act (CEQA) litigation. At the heart of the matter was the City's approval of the Agua Mansa Logistic Center (Project), involving the construction of two warehouses. The Real Parties in Interest were those that submitted the Project applications.

In May 2023, the Planning Commission Resolutions found the CEQA Guidelines section 15183 exemption applied to the Project. It found that the Project was in conformance with the previously adopted General Plan EIR (or GPEIR). A finding was also made that all environmental impacts of the Project were either less than significant or mitigated to a level of less than significant under outlined mitigation measures. Petitioners contended that the Guidelines section 15183 exemption did not apply to the Project because of issues related to the Project's greenhouse gas emissions, air quality impacts, and historic resources not being protected. Petitioners also asserted that the City's parking variance violated state planning and zoning laws and Colton's Municipal Code. As such, on July 21, 2023, Petitioners filed a Petition for a Writ of